

Intra Court Appeal No. 138 of 2015

Usman Ali.

Ex. Officio Justice of Peace/ASJ etc.

04. 19.10.2015. Mr. Ishrat Ali Javaid, Advocate for the appellant.
Mr. Muhammad Nasir Chohan, Addl. Advocate
General Punjab with Muhammad Faisal, ASI.
Rana Rashid Akram Khan, Advocate for respondent
No.4.

Through this Intra Court Appeal in terms of Section 3 of Law Reforms Ordinance, 1972, Usman Ali-appellant has assailed the legality of order dated 13.01.2015 passed by the Hon'ble Single Judge-in-Chamber whereby Writ Petition No.10367 of 2014 filed by the appellant was dismissed.

2. Briefly, the facts giving rise to the instant appeal are that respondent No.4 filed application under Section 2-B, 22-B Cr.P.C. seeking registration of case against the appellant by narrating that on 20.06.2013 at about 4. 00 p.m that he (respondent No.4) was sitting in his drawing room along with Umer Hayat and Liaqat Ali when the appellant came there and told respondent No.4 that he purchased a property situated in Shorkot City and the appellant had to pay installment of Rs.12,50,000/- and demanded the said amount. The respondent No.4 paid Rs.12,50,000/- to the appellant who gave him a cheque bearing

No.1235765 dated 20.08.2013 which ultimately was dishonoured.

3. We have heard the arguments advanced by the learned counsel for the parties and have perused the record minutely.

4. From the record annexed with this Intra Court Appeal and Constitutional Petition reflects that respondent No.4 had lodged case F.I.R. No.175 dated 18.3.2013, under Section 489-F P.P.C. at Police Station City Toba Tek Singh against father of the appellant, namely, Fazal Ahmad. During investigation of the above stated case, father of the appellant-Fazal Ahmed was arrested by the local police whereupon compromise was effected between the parties i.e. the appellant and respondent No.4. The appellant entered into agreement dated 20.06.2013 with respondent No.4 and handed over alleged cheque No.1235765 which number has been mentioned in the Agreement. The respondent No.4 had taken specific plea that on 20.06.2013 at about 4.00 p.m. he (respondent No.4) was sitting in his drawing room along with Umer Hayat and one Liaqat Ali when the appellant came there and informed him (respondent No.4) that he (the appellant) purchased a property situated in Shorkot City and he (the appellant) has to pay installment of Rs.12,50,000/- and asked for said amount. Therefore the respondent No.4 paid Rs.12,50,000/- to the appellant and the appellant handed over a cheque

No.1235765 dated 20.08.2013 to respondent No.4 which was later on dishonoured. Learned counsel for respondent No.4 has admitted execution of agreement dated 20.06.2013 but is unable to deny contents of the agreement dated 20.06.2013 which creates doubt about the contents of application for registration of case. From the record, it reveals that the cheque was given to respondent No.4 by the appellant in terms of agreement dated 20.6.2013 and that the cheque was not issued for repayment of the alleged amount lend by the complainant to the appellant as mentioned in the application for registration of case. After going through the contents of the Agreement dated 20.6.2013 and application for registration of case it reveals that the alleged cheque was not drawn for the discharge of debt. Admittedly the cheque was issued in the backdrop of settlement arrived between the parties in terms of agreement dated 20.6.2013 in case F.I.R. No.175 dated 18.3.2013, under Section 489-F P.P.C. registered at Police Station City Toba Tek Singh. The cheque given in terms of agreement dated 20.6.2013 is a cheque which was not issued to create any liability as alleged in the application for registration of case and its dishonour does not make out an offence under section 489- PPC. The act of respondent No.4 shows that just to settle his disputes with father of the appellant, respondent No.4 has moved frivolous application by way of concealing real facts and by doing so, it is axiomatic that respondent No.4 did not

approach the court with clean hands and has knocked the door of the learned Ex. Officio Justice of Peace/ASJ but with *malafide* intention and with ulterior motive in order to involve the appellant in criminal proceedings to resolve some private vengeance.

6. For the reasons recorded above, this appeal is **allowed** and the order dated 13.01.2015 passed by the learned Single Judge-in-Chamber is set aside and the order dated 18.01.2014 passed by the learned Ex-Officio Justice of peace, as well by declaring the same null and void.

(Sardar Muhammad Sarfraz Dogar)
Judge

(Aalia Neelum)
Judge

Approved for reporting.

Judge

Judge

Hamid/*